

25STCV24453 25STCV24453

County: los-angeles

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Case Number: 25STCV24453 Hearing Date: August 18, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Monica Sanchez

;

Plaintiff,

vs.

Factor Systems, Inc.

;

Defendant.

Case No.:

25STCV24453

Hearing Date:

August 18, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion
to Quash Service of Summons

MOVING PARTY: Specially Appearing Defendant Factor
Systems, Inc.

RESPONDING
PARTY: Plaintiff Monica Sanchez

Motion to Quash
Service of Summons

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

REQUEST
FOR JUDICIAL NOTICE

The court denies
the requests for judicial notice accompanying the opposition as immaterial to
the court's ruling. (Gbur v. Cohen
(1979) 93 Cal.App.3d 296, 301 (“[J]udicial notice . . . is always confined to
those matters which are relevant to the issue at hand.”).)

DISCUSSION

Specially
appearing defendant Factor Systems, Inc. (“Defendant”) moves the court for an
order quashing the service of summons by plaintiff Monica Sanchez (“Plaintiff”)
on the ground that the court lacks personal jurisdiction over Defendant.
(Code Civ. Proc., § 418.10, subd. (a)(1) [“A defendant, on or before the
last day of his or her time to plead or within any further time that the court

may for good cause allow, may serve and file a notice of motion . . . [¶] (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her”].)  

“A court of this state may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States.”   (Code Civ. Proc.,  410.10.)   “Under those Constitutions, jurisdiction is proper if a defendant has minimum contacts with California such that a suit in the state does not offend traditional notions of fair play and substantial justice.”   (Farina v. SAVWCL III, LLC (2020) 50 Cal.App.5th 286, 294.)  

““Personal jurisdiction may be either general or specific.   A nonresident defendant may be subject to the general jurisdiction of the forum if his or her contacts in the forum state are “substantial . . . continuous and systematic.””   (Jayone Foods, Inc. v. Aekyung Industrial Co. Ltd. (2019) 31 Cal.App.5th 543, 553.)   Alternatively, to determine whether specific jurisdiction exists, “courts consider the “ ‘relationship among the defendant, the forum, and the litigation.’ ”   [Citation.]”   (Ibid.)    

““When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction.   [Citation.]   Once facts showing minimum contacts with the forum state are established, however, it becomes the defendant’s burden to demonstrate that the exercise of jurisdiction would be unreasonable.   [Citation.]””   (Burdick v. Superior Court (2015) 233 Cal.App.4th 8, 17.)      

1.

General Jurisdiction

The court finds that it does not have general jurisdiction over Defendant because Plaintiff does not argue that general jurisdiction exists. (Burdick, supra, 233 Cal.App.4th at p. 17 [“the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction”].

2.

Specific Jurisdiction

“A court may exercise specific jurisdiction over a nonresident defendant only if: (1) “the defendant has purposefully availed himself or herself of forum benefits” [citation]; (2) “the ‘controversy is related to or “arises out of” [the] defendant’s contacts with the forum’ ” [citation]; and (3) “ ‘the assertion of personal jurisdiction would comport with “fair play and substantial justice” ’ ” [citation].”⁶ (Jayone Foods, Inc., supra, 31 Cal.App.5th at p. 553.)⁷

Plaintiff contends that Defendant purposefully availed itself of the benefits of California by operating an interactive, commercial website targeting the California market. The operation of a website is subject to a “sliding scale” analysis regarding the exercise of jurisdiction. (Pavlovich v. Superior Court (2002) 29 Cal.4th 262, 274.) “At one end of the spectrum are situations where a defendant clearly does business over the Internet. If the defendant enters into contracts with residents of a foreign jurisdiction that involve the knowing and repeated transmission of computer files over the Internet, personal jurisdiction is proper. [Citation.] At the opposite end are situations where a defendant has simply posted information on an Internet Web site which is accessible to users in foreign jurisdictions. A passive Web site that does little more than make information available to those who are interested in it is not grounds for the exercise [of] personal jurisdiction. [Citation.] The middle ground is occupied by interactive Web sites where a user can exchange information with the host computer. In these cases, the exercise of jurisdiction is determined by examining the level of interactivity and commercial nature of the exchange of information that occurs on the Web site.” (Pavlovich, supra, 29 Cal.4th at 274, quoting Zippo Mfg. Co. v. Zippo Dot Com, Inc. (W.D.Pa. 1997) 952 F. Supp. 1119, 1124.)

Plaintiff presents evidence that Defendant’s website contains an interactive chat feature, a search dialog, and has fillable forms to sign up for electronic newsletters and demonstrations, and to contact Defendant’s customer service representatives. (Ferrell Decl. ¶¶ 4-7.) Plaintiff also presents evidence that the website uses cookies to collect browser and online activity data from users. (Ferrell Decl. ¶ 9; Ex. 5.) Plaintiff also states that the website’s privacy policy expressly references the rights of Californians under the Consumer Privacy Act as amended by the Privacy Rights Act and thus argues that the website was constructed with an eye toward California. (Ferrell Decl. ¶ 8;

Exh. 4.)

The court finds

that the evidence presented by Plaintiff is not sufficient to establish Defendant's purposeful availment of the benefits of California. The interactivity features of Defendant's website do not demonstrate that Defendant targeted its activities at California residents. Moreover, the court declines to find that mere incorporation of California law into a privacy policy is evidence of targeting. Such a rule would incentivize foreign actors to ignore California law or else risk implied submission to California's jurisdiction.

The court also

finds that the evidence of Defendant's having a physical office in Sacramento does not establish specific jurisdiction because this action, based on the operation of the website, does not arise out of the possession of that physical office. (Ferrell Decl. ¶ 5; Complaint ¶¶ 10-38.)

Jurisdictional Discovery

Plaintiff has

requested, if the court is inclined to grant Defendants' motion, that the court continue the hearing on this motion to permit Plaintiff to conduct jurisdictional discovery.

“A trial court

has the discretion to continue the hearing on a motion to quash service of summons for lack of personal jurisdiction to allow the plaintiff to conduct discovery on jurisdictional issues.’ [Citation.] ‘In order to prevail on a motion for a continuance for jurisdictional discovery, the plaintiff should demonstrate that discovery is likely to lead to the production of evidence of facts establishing jurisdiction.’” (Preciado v. Freightliner Custom Chassis Corporation (2023) 87 Cal.App.5th 964, 972 [internal citations omitted].)

The court finds

that Plaintiff has not demonstrated that discovery is likely to lead to the production of evidence of facts establishing the court's jurisdiction over Defendant. Plaintiff has not specified the type of discovery that it intends to take and the likelihood that it will establish jurisdiction. Instead, Plaintiff has merely requested leave to conduct discovery in

conclusory fashion. The court therefore exercises its discretion to deny Plaintiff's request for a continuance to conduct jurisdictional discovery.

Conclusion

For the reasons set forth above, the court finds that Plaintiff has not met its burden to prove personal jurisdiction over Defendant by a preponderance of the evidence. (Farina, supra, 50 Cal.App.5th at p. 293.) The court therefore grants Defendant' motion. (Code Civ. Proc., § 418.10, subd. (a)(1).)

ORDER

The court GRANTS special appearing defendant Factor Systems, Inc.'s motion to quash service of summons for lack of personal jurisdiction.

The court orders that service of plaintiff Monica Sanchez's summons and complaint in this action, on specially appearing defendant Factor Systems, Inc., is quashed. (Code Civ. Proc., § 418.10, subd. (a)(1).)

The court orders specially appearing defendant Factor Systems, Inc. to prepare, serve, and lodge a proposed judgment of dismissal within 10 days of the date of this order.

The court sets an Order to Show Cause re entry of judgment of dismissal for hearing on October 12, 2026, at 8:30 a.m., in Department 513.

The court orders special appearing defendant Factor Systems, Inc. to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 18, 2026

Robert B. Broadbelt III

Judge of the Superior Court